

MUTUAL NON-DISCLOSURE AND PROPRIETARY INFORMATION AGREEMENT

Effective as of 20th November 2024 between the Disclosing and Receiving Parties

1. PURPOSE:

The parties wish to explore a potential strategic technology collaboration regarding cross-border payment gateway integrations. In connection with this purpose, each party may disclose valuable proprietary and confidential information.

2. DEFINITION OF CONFIDENTIAL INFORMATION:

'Confidential Information' includes all non-public technical, commercial, financial, customer, source code, and design information disclosed orally, visually, or in tangible form marked 'Confidential' or that reasonably ought to be understood as confidential.

3. EXCLUSIONS FROM CONFIDENTIALITY:

Confidential Information does not include information that: (a) is or becomes publicly known through no breach of this Agreement; (b) was already in the receiving party's possession prior to disclosure; (c) is independently developed without reference to the disclosed information; or (d) is required to be disclosed pursuant to judicial decree or statutory authority, provided prompt written notice is given.

4. CONFIDENTIALITY DUTIES AND RESTRICTIONS:

4.1 Each receiving party agrees to hold the disclosing party's confidential data in strict confidence, applying at least a reasonable standard of care.

4.2 Neither party shall disclose information to any third party except to its officers, legal counsel, and engineers who have a need-to-know and are bound by written non-disclosure obligations no less restrictive than this Agreement.

5. RETURN OR DESTRUCTION OF CONFIDENTIAL MATERIALS:

5.1 **Mandatory Return Timeline:** Within seven (7) business days of receiving a written request from the Disclosing Party, the Receiving Party shall return or destroy all physical documents, electronic files, recordings, and backups containing Confidential Information.

5.2 An authorized officer of the Receiving Party shall certify in writing that all materials have been destroyed or returned within the 7-day period.

6. TERM AND SURVIVAL:

This Agreement shall remain in effect for two (2) years from the Effective Date. The confidentiality and non-use obligations shall survive for a period of five (5) years following the termination or expiration of this Agreement.

7. GOVERNING LAW AND VENUE:

This Agreement shall be governed by the laws of India. Any legal dispute shall be instituted exclusively in the competent civil courts of New Delhi.

EXECUTED BY AUTHORIZED SIGNATORIES OF BOTH PARTIES.